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Tentative Ruling

Re: **Barakat v. Barakat**
Superior Court Case No. 24CECG03271

Hearing Date: July 22, 2026 (Dept. 502)

Motion: Motion to Authorize Third-Party Subpoena

If oral argument is timely requested, it will be entertained on Thursday, July 23, 2026, at 3:30 p.m. in Department 502

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 7-20-26
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: **Ramirez v. Sun Valley Raisins, Inc.**
Superior Court Case No. 25CECG05971/COMPLEX

Hearing Date: July 22, 2026 (Dept. 502)

Motion: By Defendant Sun Valley Raisins, Inc. to Compel Arbitration
and Dismiss Class Claims

**If oral argument is timely requested, it will be entertained on
Thursday, July 23, 2026, at 3:30 p.m. in Department 502**

Tentative Ruling:

To grant and order the parties to arbitrate plaintiff Reyna Ramirez's claims against defendant Sun Valley Raisins, Inc. To dismiss the class claims.

Explanation:

Arbitration

In moving to compel arbitration, a defendant must prove by a preponderance of evidence the existence of the arbitration agreement and that the disputes are covered by the agreement. The party opposing the motion must then prove by a preponderance of evidence that a ground for denial of the motion exists (e.g., fraud, unconscionability, etc.) (*Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal.App.4th 754, 758.)

Written Agreement

Unless there is a dispute over authenticity, the mere recitation of the terms is sufficient for a party to move to compel arbitration. (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.) The moving party has the burden of proving the existence of a valid arbitration agreement. (*Pinnacle Museum Tower Assn v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) A party opposing arbitration has the burden of showing that the arbitration provision cannot be interpreted to cover the claims in the complaint. (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 890.)

Here, defendant Sun Valley Raisins, Inc. ("Defendant") attached a copy of an employee handbook, and an acknowledgment of the terms thereof, in English and Spanish, signed by plaintiff Reyna Ramirez ("Plaintiff") on September 7, 2023. (Verified Petition, ¶¶ 4, 5, and Ex. 1-4 thereto.) The employee handbook states that the parties agree to arbitrate any disputes arising out of the employment relationship.

Plaintiff opposes, solely on the grounds that Defendant has not met its moving burden.¹ Plaintiff however makes no specific argument, instead merely alluding to some perceived inconsistencies. Plaintiff suggests that there are inconsistencies between the English and Spanish versions of the acknowledgement form. Plaintiff suggests that the English version expressly refers to "Ray Moles Farms". Nothing in Exhibit 4 appears to support that conclusion. (Verified Petition, Ex. 4, at p. 125 of the packet.)

The opponent to arbitration need not prove that her purported signature is not authentic, but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent. (*Ramirez v. Golden Queen Mining Company, LLC* (2024) 102 Cal.App.5th 821, 832-833.) The arbitration proponent retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature. (*Id.* at p. 833.) Presumptions are to be made in favor of arbitrability. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 971-972.) Based on the above, the court finds that Plaintiff has not created a factual dispute, and therefore there is a written agreement to arbitrate.

Unconscionability

If the court finds as a matter of law that a contract or any portion of it was unconscionable at the time it was made, the court may refuse to enforce it, or may enforce the contract without the unconscionable provisions, or limit their application to avoid any unconscionable result. (Civ. Code, § 1670.5, subd. (a).) There are two prongs considered in this analysis: procedural unconscionability and substantive unconscionability. Both must be present for a court to exercise its discretion to refuse to enforce an arbitration agreement under the doctrine of unconscionability. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113 ("Armendariz").) They need not be present in equal amounts; essentially a sliding scale is used, and where there is substantive unconscionability, less procedural unconscionable need be shown. (*Id.* at pp. 113-114.)

Plaintiff argues that the arbitration agreement is procedurally unconscionable because, among other things, the arbitration agreement is a contract of adhesion. It is argued that Plaintiff was provided the arbitration agreement as a take-it-or-leave-it basis with little time to review, and that no one explained the terms to her. (*Ramirez Decl.*, ¶¶ 5-8.) Plaintiff suggests that a representative of Defendant, Jerrico, acted as a sort of fiduciary to explain the terms of the documents put before her and failed to do so. (See *id.* ¶ 5.)

The use of a fiduciary does not excuse Plaintiff's obligation to read what she signs. (*E.g., Appalachian Ins. Co. v. McDonnell Douglas Corp.* (1989) 214 Cal.App.3d 1, 22 ["[T]he mere fact that a contract term is not read or understood by the nondrafting party or that the drafting party occupies a superior bargaining position will not authorize a court

¹ Defendant submits that the opposition is untimely pursuant to Code of Civil Procedure section 1290.6. It has long been held that absent a showing of prejudice, untimely papers will be considered. (*E.g., Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 847.) To the extent that the opposition papers may be considered untimely, the court exercises discretion to consider the late filings. (Cal. Rules of Ct., rule 3.1300(d).)

to refuse to enforce the contract.”]) Reliance on an alleged misrepresentation is not reasonable when a party could have ascertained the truth through reasonable diligence. (*Brookwood v. Bank of America* (1996) 45 Cal.App.4th 1667, 1673-1674.) Reasonable diligence requires the reading of a contract before signing it; a party cannot use his or her own lack of diligence to avoid an arbitration agreement. (*Id.* at p. 1674.) Misrepresentation by a fiduciary does not render a contract void unless the misled party, before making the agreement, lacked a reasonable opportunity to learn its terms. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 420-421.) While the terms of the arbitration agreement are housed in the employment handbook, the acknowledgment alerts the signatory of materially the same terms as identified in the handbook.

Neither is it clear what Plaintiff intends to argue when she cites the failure to provide arbitration rules. Nothing in the agreement identifies an arbitration group for which rules could be ascertained at the time of the agreement. This is factually inapposite to the law cited for the premise. (*Compare Trivedi v. Curexco Technology Corp.* (2010) 189 Cal.App.4th 387, 392-393 [finding that the language of the arbitration clause specifically identified the American Arbitration Association and its national rules as an exclusive method to resolve disputes] *disapproved on other grounds by Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237.) Moreover, the rules of the arbitration group themselves must itself be a basis for a finding of unconscionability. (*Baltazar v. Forever 21, Inc.*, *supra*, 62 Cal.4th at p. 1246 [finding that a plaintiff's unconscionability claim must depend in some manner on the arbitration rules in question, and is function more of substantive unconscionability].) Plaintiff identifies none.

Further, a contract of adhesion is one imposed and drafted by the party of superior bargaining strength, and relegates to the subscribing party only the opportunity to adhere to the contract or reject it. (*Mission Viejo Emergency Medical Associates v. Beta Healthcare Group* (2011) 197 Cal.App.4th 1146, 1159.) Adhesion does not *per se* render the arbitration agreement unenforceable, since such contracts “are an inevitable fact of life for all citizens, businessman and consumer alike.” (*Graham v. Scissor-Tail, Inc.* (1981) 28 Cal.3d 807, 817-818.) A finding of procedural unconscionability does not mean that a contract will not be enforced, but rather that courts will scrutinize the substantive terms of the contract to ensure they are not manifestly unfair or one-sided. (*Baltazar v. Forever 21, Inc.*, *supra*, 62 Cal.4th at p. 1244.) In other words, there must also be substantive unconscionability. (*Armendariz, supra*, 24 Cal.4th at p. 114.) Here however, though there is an argument suggesting that the arbitration provisions were a condition of employment, no evidence was submitted in support. (See *generally* Ramirez Decl.; see also Verified Petition, and exhibits thereto.) To the extent that there may be procedural unconscionability, Plaintiff fails to demonstrate “a very high degree of procedural unconscionability.” The court turns to substantive unconscionability.

The substantive inquiry considers whether the overall bargain is overly harsh or unreasonably one sided. (*Armendariz, supra*, 24 Cal.4th at p. 114.) California courts have stated the standard variously, defining it as, for example: so one sided as to shock the conscience (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 246); unduly oppressive (*Perdue v. Crocker National Bank* (1985) 38 Cal.3d 913, 925); and unfairly one-sided (*Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1071). The California Supreme Court has acknowledged these variations and has clarified

the differing formulations mean the same thing. (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 911.)

Plaintiff submits that the arbitration provision is substantively unconscionable because there is a lack of mutuality, that “Defendant attempts to enforce only the parts that benefit them, without taking responsibility for the entire bundle of terms they impose.” The court is unable to discern the intent of this argument and what portions of the arbitration provision lack mutuality.

Plaintiff next argues that Defendant bears the burden to demonstrate enforceability. This is an inaccurate assertion, for which *Armendariz* was cited, at page 102. Nothing in this citation supports the conclusion drawn by Plaintiff that Defendant bears this burden. At the pincite, *Armendariz* cites to *Cole v. Burns International Security Services*, (D.C.Cir. 1997) 105 F.3d 1465, which concluded that an arbitration agreement is lawful if five factors were present. The *Cole* opinion concluded that “an employee who is made to use arbitration as a condition of employment ‘effectively may vindicate [his or her] statutory cause of action in the arbitral forum.’” (*Cole v. Burns Intern. Security Services* (D.C.Cir. 1997) 105 F.3d 1465, 1482.) These factors were endorsed in *Armendariz*, for the courts to ensure that the arbitration forum imposed on an employee is sufficient to vindicate his or her statutory rights. (See *Armendariz, supra*, 24 Cal.4th at p. 103, fn. 8 [discussing the context of Fair Employment and Housing Act claims].) In other words, these are defenses to enforcement, a burden Plaintiff bears.

Plaintiff concludes that the arbitration provision is substantively unconscionable under *Armendariz* because the agreement is silent as to who bears the burden of the costs of initiating mandatory arbitration. Though Plaintiff has not sufficiently established that arbitration here was a mandatory condition of employment, as Defendant notes, “the absence of specific provisions on arbitration costs would... not be grounds for denying the enforcement of an arbitration agreement” because the agreement impliedly obliges the employer to pay all types of costs that are unique to arbitration. (*Armendariz, supra*, 24 Cal.4th at p. 113 citing *Cole, supra*, at pp. 1485-1486.)

Plaintiff next argues that there are no provisions for discovery. Again, as Defendants note on reply, and as the law suggests, the employer, by agreeing to arbitrate these claims, impliedly consents to such discovery. (*Armendariz, supra*, 24 Cal.4th at p. 106.)

In the absence of substantive unconscionability against the modest demonstration of procedural unconscionability, the court finds that the arbitration agreement is not so unconscionable as to be unenforceable. Accordingly, the motion to compel arbitration of Plaintiff’s claims is granted. The motion to dismiss class claims is granted. (*AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 347-348 [finding that class arbitration must be by consent]; see also *Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 391, abrogated on other grounds by *Viking River Cruises, Inc. v.*

Moriana (2022) 596 U.S. 639 [finding that an arbitration agreement lacked an agreement to resolve a representative action in arbitration].)²

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 7-21-26
(Judge's initials) (Date)

² No request for stay was noticed nor requested in the moving papers. (Code Civ. Proc., § 1281.4 [directing the court to impose a stay upon motion of a party to the action]; 9 U.S.C. § 3 [directing the court to impose a stay on application of one of the parties].)

Additionally, the Verified Petition seeks an award of costs pursuant to Code of Civil Procedure section 1293.2 without any discussion as to the statute's applicability. Code of Civil Procedure section 1293.2 provides merely that "[t]he court shall ward costs upon any judicial proceeding under this title as provided in Chapter 6 (commencing with Section 1021) of Title 14 of Part 2 of this code." Defendant identifies no bases under Code of Civil Procedure section 1021 *et seq.* under which Defendant is entitled to the relief sought under Code of Civil Procedure section 1293.2. The court will not engage in speculation as to Defendant's bases. The informal request for costs, which is also absent from the notice of motion, is denied without prejudice.